

UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF SOUTH CAROLINA
CHARLESTON DIVISION

Keri Alana Crosby,

Plaintiff,

vs.

Jennifer Robair Rutland,

Defendant.

CASE NO.: 2:26-cv-02836-RMG

COMPLAINT
(JURY TRIAL DEMANDED)

Plaintiff, by and through undersigned counsel, complaining of the Defendant allege and will respectfully show unto this Honorable court as follows:

1. This is a civil action for personal injuries and damages arising from the negligent operation of a motor vehicle by an employee of the United States Postal Service acting within the course and scope of their employment.

2. Plaintiff seeks recovery under the Federal Tort Claims Act, 28 U.S.C. § 1346(b) and 2671-2680.

3. This Court has subject matter jurisdiction pursuant to 28 U.S.C. §1346 (b) (1).

4. Plaintiff has satisfied all administrative prerequisites to filing this action under 28 U.S.C. § 2675(a). Plaintiff timely presented an administrative claim to the United States Postal Service, and the claim was denied, or more than six months have elapsed without final disposition.

5. Venue is proper in the United states District Court for the District of South Carolina, Charleston Division pursuant to 28 U.S.C. §1402(b) as the acts and omissions giving rise to this action occurred within this judicial district and/or Plaintiff resides within this district.

6. That Plaintiff, Keri Alana Crosby, is a citizen and resident of Colleton County, South Carolina.

7. Defendant, Jennifer R. Rutland, is a citizen and resident of Colleton County, South Carolina.

8. Defendant, United states Postal Service is the proper Defendant under the Federal Tort Claims Act.

9. This Honorable Court has jurisdiction over the parties, subject matter, and venue is proper.

FACTS

10. On or about July 22, 2025, Plaintiff was lawfully operating her vehicle traveling North on Winchester Road in Colleton County, South Carolina.

11. At the same time and place Defendant, a United States Postal Service employee was operating a USPS vehicle within the scope of her employment.

12. Defendant's employee attempted to make an illegal U-turn, and/or turn into a private driveway in on the roadway entering into Plaintiff's lane of travel and colliding with plaintiff's vehicle.

13. Defendant's employee failed to yield to oncoming traffic and/or the right of way of Plaintiff and collided with Plaintiff causing Plaintiff to suffer injuries.

14. The Defendant's employee owed to Plaintiff a duty to exercise reasonable care and caution in operating their vehicle.

15. Plaintiff's injuries were directly due to and proximately caused by the negligent, grossly negligent, careless, reckless, willful, and wanton, conduct of the Defendant's employee in one or more of the following particulars:

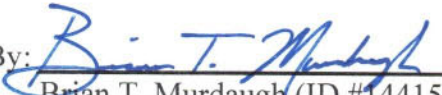
- a. In failing to keep the vehicle under proper control;
- b. In failing to use the degree of care and caution that a reasonable and prudent person would have under the same or similar circumstances;
- c. In failing to keep a proper lookout while operating the vehicle;
- d. In failing to yield and or adequately apply the brakes;
- e. In operating the vehicle with disregard for the safety of others including Plaintiff;
- f. In failing to comply with applicable state laws and regulations; and
- g. In such other particulars as the evidence may show.

16. That as a direct and proximate result of the aforementioned negligent, reckless, willful, and wanton conduct of the Defendant's employee, the Plaintiff has suffered injuries and damages including but not limited to: physical injuries, pain and suffering, mental anguish, humiliation, emotional distress, loss of enjoyment of life, and medical bills and expenses.

17. Plaintiff is therefore entitled to damages from Defendant in such amount as shall be determined by the trier of fact.

WHEREFORE, Plaintiff prays for judgment against Defendant for damages in an appropriate amount to be determined by the finder of fact, for the costs of this action, and for such other and further relief as the Court may deem just and proper.

Respectfully submitted:

By: 
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ATTORNEYS FOR PLAINTIFF

July 14, 2026
Walterboro, South Carolina